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|    |                                                                                      | <p>where the termination decision was made as a crucial element of the claim because this decision gives rise to the liability of the conduct.’ [Citations.]</p> <p>(<i>Hill, supra</i>, 773 F.Supp.3d at pp. 793-794.)</p> <p>Here, although Plaintiff is not a resident of California and worked from her residence in Texas, the FAC alleges that “Plaintiff’s job duties involved <i>exclusively</i> scheduling patients’ appointments and maintaining the schedules of multiple physicians who serviced patients at Defendants’ office in Orange County, California;” throughout Plaintiff’s employment she provided services exclusively for one location in Orange County, California. (FAC ¶¶ 16-19 (emphasis added).) Further, “[t]he decision to terminate Plaintiff was ratified by CEO/Executive Director, Laurie Gallagher, and Executive Assistant, Stephanie Morales, who both worked out of Defendants’ Newport Beach, California, office.” (FAC ¶ 29.) A Termination Letter was sent by Defendants’ Executive Director, Laurie Gallagher, and issued from Defendants’ Orange County, California location. (FAC ¶ 30.)</p> <p>These allegations are sufficient to show that the alleged age discrimination and wrongful termination occurred in California.</p> <p>Accordingly, the <u>demurrer</u> is <b>OVERRULED</b>. Defendants are to <b>file and serve their Answer within 20 days</b>.</p> <p>The Court <b>GRANTS</b> Defendants’ request for <u>judicial notice</u>.</p> <p><b>Defendants to give notice.</b></p> |
| 3. | <p><b>30-2025-01503271</b></p> <p><b>Baskharoon vs. PHH Mortgage Corporation</b></p> | <p><b>1 Case Management Conference</b></p> <p><b>2. Demurrer to Complaint</b></p> <p>Defendants PHH Mortgage Corporation and Ocwen Financial Services, Inc. (“Defendants”) demur to the Complaint of plaintiffs Miranda H Baskharoon and Tony H Baskharoon (“Plaintiffs”) on the ground that it fails to state facts sufficient to constitute a cause of action.</p> <p>The Court notes that no opposition has been filed. The failure to oppose a demurrer may be construed as abandonment of the claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue.”].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529.)</p> <p>The Court construes the failure to oppose the Demurrer as abandonment of Plaintiffs’ claims. Therefore, the unopposed Demurrer is <b>SUSTAINED in its entirety with 20 days leave to amend</b>.</p> <p><b>Defendants to give notice.</b></p>                                                                                                                                         |